

2:00 PM

LINE 5

25-CIV-06341

MOJTABA TAIEBAT VS. ANDREW G WATTERS

MOJTABA TAIEBAT  
ANDREW G WATTERS

MICHAEL TSIVYAN  
JERAMY STEPHEN STONE

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MOTION TO BE RELIEVED AS COUNSEL FOR PLAINTIFF MOJTABA TAIEBAT

CONTINUED FROM 6/23/2026

**TENTATIVE RULING:**

The court continued the hearing from June 23, 2026 until September 8, 2026 because of a pending August 4, 2026 demurrer and the potential prejudice to plaintiff, which was one of plaintiff's request.

The demurrer has been resolved and the only pending hearing is a case management conference on November 4, 2026. Thus, the court's concerns regarding prejudice to plaintiff no longer exist.

Although plaintiff raises other objections to the withdrawal of Tsivyan, the court cannot order an attorney to take certain litigation steps. These requests show a break-down of communication. The court finds good cause to grant the motion based upon Tsivyan's declaration and there is no prejudice to plaintiff.

Therefore the court GRANTS the motion of Michael Tsivyan to be relieved of counsel for plaintiff.

The withdrawal does not become effective until the filing of the proof of service of the signed order upon the client and all other notices.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action and plaintiff, as required by law and the California Rules of Court.

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2:00 PM

LINE 6

25-CIV-09845

JEWISH LEGAL NEWS, INC. VS. CABRILLO UNIFIED SCHOOL DISTRICT, ET AL.

JEWISH LEGAL NEWS, INC.  
CABRILLO UNIFIED SCHOOL DISTRICT

MARK L. JAVITCH  
RICHARD W OSMAN

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RESPONDENTS SOUTH SAN FRANCISCO UNIFIED SCHOOL DISTRICT AND LA HONDA-PESCADERO UNIFIED SCHOOL DISTRICT'S DEMURRER TO PETITIONER'S AMENDED VERIFIED PETITION FOR WRIT OF MANDATE FOR VIOLATIONS OF THE CALIFORNIA PUBLIC RECORDS ACT

**TENTATIVE RULING:**

On October 20, 2025, Petitioner submitted California Public Records Act (CPRA) requests to Respondents seeking the Ethnic Studies curriculum taught during the 2024–2026 school years—specifically, “all instructional materials, including classroom slides, assignments, handouts, resources, texts.” (Petition, Ex. A.)

The request specifically stated: “To minimize the burden of production, I am not asking for any documents to be produced, instead I am asking for a login to the existing software used to facilitate assignments, slides and homework electronically.” (Petition, Ex. A.)

The Petition alleges that Respondents did not produce the curriculum and did not provide access to the platforms where it is maintained. (Petition ¶¶ 40–41.)

Accordingly, Petitioner alleges that Respondents violated the CPRA (first cause of action) and seeks related declaratory and injunctive relief (second cause of action).

LEGAL ANALYSIS

*1. The CPRA Does Not Require a Public Entity to Grant a Requesting Party Access to Its Computer Systems*

Respondents' primary argument is that Petitioner's demand for login credentials for ongoing "observer access" to an educational software platform does not identify any specific record; it instead seeks an open-ended inspection regime over the entire system and all content within it. The CPRA does not require Respondent's to grant that request, and a petition demanding access to an entire software ecosystem, rather than copies of specific records extracted from it, seeks relief that falls entirely outside that statutory purpose of the CPRA. Respondents also argue that they only have the duty to produce non-exempt records, which determination is made prior to disclosure. Petitioner's request would result in the production of both exempt and non-exempt records.

Respondents' argument is supported by the statutory framework of the CPRA.

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